

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kaitlin Campbell	Team: Squad #13	CCRB Case #: 201709507	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/16/2017 4:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/16/2019	Precinct: 62		
Date/Time CV Reported Thu, 11/16/2017 3:46 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/16/2017 3:46 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Thomas Parco	2366	939175	062 PCT
2. An officer			062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Thomas Mercado	23011	942195	062 PCT
2. POM Eduard Nogol	17002	931851	062 PCT
3. SGT Heriberto Hernandez	01584	932167	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	A . Officer(s) Unidentified
B . SGT Thomas Parco	Discourtesy: Sergeant Thomas Parco spoke discourteously to § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated

Case Summary

On November 16, 2017, at approximately 3:46 p.m., § 87(2)(b) called the CCRB and filed this complaint.

On November 16, 2017, at approximately 4:30 a.m., § 87(2)(b) was home sleeping at § 87(2)(b) when she woke up to the sound of someone banging on her apartment door. § 87(2)(b) came out of her bedroom into the living room, which connected to the kitchen in an open floor plan. The apartment door was off a small hallway leading from the kitchen, off of which were doors to the bathroom, her § 87(2)(b)-old son's bedroom, and the room where her husband § 87(2)(b) was staying. Both her husband and son were home and her § 87(2)(b)-old daughter, § 87(2)(b), was sitting on the couch, § 87(2)(b) came out of his room after the banging started.

§ 87(2)(b) heard someone yell, "Open the fucking door," and "what the fuck is going on?" (**Allegation A: Discourtesy – Word, officer unidentified**)

§ 87(2)(b) opened the door. § 87(2)(b) stood behind § 87(2)(b) Sgt. Parco said, "What the fuck is going on?" and, "What took you so fucking long?" (**Allegation B: Discourtesy – Word, unsubstantiated**).

§ 87(2)(b) was arrested in regards to an open warrant for § 87(2)(b) (Board Review 01). The warrant stemmed from a complaint § 87(2)(b) filed against § 87(2)(b) on August 30, 2018 (Board Review 02). The investigation was not able to contact § 87(2)(b) for an interview, though contact attempts to him were exhausted.

The cell phone video of this incident taken by § 87(2)(b) does not capture the allegations (Board Review 03).

Findings and Recommendations

Allegation (A) Discourtesy: An officer spoke discourteously to § 87(2)(b)

In her in-person statement § 87(2)(b) said that someone yelled "Open the fucking door," and "What the fuck is going on?" but could not say which officer, of the four she ultimately saw, said that. In her initial phone statement, however, § 87(2)(b) did not mention any officer making statements while the door was closed.

In a phone statement, § 87(2)(b) said she woke up on the living room couch to the sound of banging on the door. § 87(2)(b) walked behind § 87(2)(b) toward the door, and turned into her brother's room perpendicular to the door. She did not hear anyone yell, "Open the fucking door" or, "What the fuck is going on?"

PO Mercado and PO Nogol both said that they were not standing outside the door to § 87(2)(b) before it was opened. PO Mercado said he stood in front of the building until he was called over the radio to come upstairs. When he reached the § 87(2)(b) floor hallway the door to § 87(2)(b) was open and § 87(2)(b) was in handcuffs. PO Nogol said he was standing on the side of the house, monitoring windows in case § 87(2)(b) tried to jump out of one, and that he never went into the building at any point. Sgt. Parco and Sgt. Hernandez both said all four officers went upstairs but that only Sgt. Parco and Sgt. Hernandez knocked on the door. Sgt. Parco and Sgt. Hernandez both said they knocked on the door for five minutes but did not yell anything into the apartment. All four officers denied saying, "Open the fucking door" or "What the fuck is going on?" and all four officers denied that another officer made those statements.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b). It is therefore recommended that **Allegation A** be closed as **officer unidentified**.

Allegation (B) Discourtesy: Sergeant Thomas Parco spoke discourteously to § 87(2)(b)

§ 87(2)(b)

In § 87(2)(b)'s phone statement, she said that when § 87(2)(b) opened the door, there were three uniformed police officers standing in the hallway. A male Hispanic officer who was about 5'10" tall, had dark hair, and was in his 30s, asked her what took so "fucking long" to open the "fucking door," and then said, "What the fuck is this?"

In § 87(2)(b)'s in-person statement, she said that a male, uniformed, Hispanic officer who was 5'7" tall, had dark hair and brown eyes, with no facial hair, and was in his late 30s, said, "What the fuck is going on?" and "What took you so fucking long?"

In a follow-up phone call to the undersigned investigator, § 87(2)(b) said § 87(2)(b) told her he read the officer's name from his badge as "Pareco" but refused to provide any additional contact information for § 87(2)(b). As mentioned above, contact attempts to § 87(2)(b) were exhausted.

§ 87(2)(b), who was in a room perpendicular to the main door § 87(2)(b) opened, said she partially saw two officers, both of whom she described as white, male, about 6' tall, and with an average build. § 87(2)(b) said one of the officers said, "What happened? You don't hear the fucking door?" and, "What the fuck is wrong with you?"

§ 87(2)(g)

§ 87(2)(b) Sgt. Parco and Sgt. Hernandez both said PO Mercado and PO Nogol had no conversation with § 87(2)(b). Sgt. Parco is a § 87(2)(b)-old white man—§ 87(2)(b) with brown hair and brown eyes, and he was in uniform during the incident. At his CCRB interview, Sgt. Parco was clean-shaven. Sgt. Hernandez is a § 87(2)(b)-old Hispanic man—§ 87(2)(b) with brown hair and brown eyes, and he was wearing plainclothes during the incident. At his CCRB interview, Sgt. Hernandez had a full beard and mustache. Because Sgt. Parco was in uniform, did not have facial hair, was alleged second-hand to be the subject officer, and acknowledged speaking to § 87(2)(b) these allegations are being pled against him.

Sgt. Parco denied making the alleged statements, and all four officers denied hearing him make the alleged statements.

Patrol Guide Procedure 203-09 states that an officer should be courteous and respectful when dealing with members of the public (Board Review 04).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) It is therefore recommended that **Allegations B and C** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been parties.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation due to the arrest.
- As of March 22, 2018 the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 05).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Squad No.: 13

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date